



Bill Number: S.C.R. 1049

Payne Floor Amendment

Reference to: printed resolution

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Removes the requirement that death by firing squad is the only method of death for a defendant who has murdered a law enforcement officer and knew or should have known the officer was acting in the officer's line of duty.
2. Makes conforming changes.

PAYNE FLOOR AMENDMENT
SENATE AMENDMENTS TO S.C.R. 1049
(Reference to printed resolution)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The resolution as proposed to be amended is reprinted as follows:

2 1. Article XXII, section 22, Constitution of Arizona, is proposed
3 to be amended as follows if approved by the voters and on proclamation of
4 the Governor:

5 22. Judgments of death

6 Section 22. A. The judgment of death shall be
7 inflicted by THE DEFENDANT'S CHOICE OF ONE OF THE FOLLOWING:

8 1. FIRING SQUAD.

9 2. Administering an intravenous injection of a
10 substance or substances in a lethal quantity sufficient to
11 cause death. ~~except that defendants sentenced to death for~~
12 ~~offenses committed prior to the effective date of the~~
13 ~~amendment to this section shall have the choice of either~~
14 ~~lethal injection or~~

15 3. Lethal gas.

16 B. IF A DEFENDANT DOES NOT CHOOSE A METHOD OF DEATH,
17 THE DEFAULT METHOD OF DEATH IS LETHAL INJECTION.

18 ~~[C. NOTWITHSTANDING SUBSECTION A OF THIS SECTION, DEATH~~
19 ~~BY FIRING SQUAD IS THE METHOD OF DEATH FOR A DEFENDANT WHO HAS~~
20 ~~MURDERED A LAW ENFORCEMENT OFFICER AND THE DEFENDANT KNEW OR~~
21 ~~SHOULD HAVE KNOWN THE LAW ENFORCEMENT OFFICER WAS ACTING IN~~
22 ~~THE LAW ENFORCEMENT OFFICER'S LINE OF DUTY.]~~

23 ~~[D.]~~ [C.] IF ANY OPTION IS INVALIDATED BY AN
24 UNAPPEALABLE COURT ORDER OR IS UNAVAILABLE IN THE STATE AT THE
25 TIME THE DEFENDANT CHOOSES A METHOD OF DEATH, THE DEFENDANT
26 MAY CHOOSE FROM OTHER OPTIONS LISTED IN THIS SECTION, AND
27 JUDGMENT OF DEATH SHALL BE INFLICTED BY ANY LAWFUL MEANS
28 AVAILABLE IF THE FINAL CHOICE IS UNAVAILABLE.

1 ~~[F.]~~ [D.] The lethal injection or lethal gas shall be
2 administered under such procedures and supervision as
3 prescribed by law. DEATH BY FIRING SQUAD SHALL BE CONDUCTED BY
4 A MINIMUM OF THREE VOLUNTEER SHOOTERS AND WITH THE USE OF ONE
5 BLANK ROUND. The execution shall take place within the limits
6 of the state prison.
7 2. The Secretary of State shall submit this proposition to the
8 voters at the next general election as provided by article XXI,
9 Constitution of Arizona.

10 Enroll and engross to conform
11 Amend title to conform

KEVIN PAYNE

SCR1049FloorPAYNE.docx
02/24/2026
4:03 PM
C: JV
130EMATGP